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| 9  | <p><b>Huynh vs. Williams</b></p> <p><b>2024-01436961</b></p>                      | <p><b>1. Motion for Reconsideration</b></p> <p><b>2. Case Management Conference</b></p> <p>Parties have stipulated to continue the motion to 09/14/2026 at 1:45 pm in Department C15.</p> <p>The Case Management Conference is hereby also continued to 09/14/2026 at 1:45 pm in C15.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 10 | <p><b>Jin and Yu, LLC vs. Pup Pup Hooray, LLC</b></p> <p><b>2024-01418427</b></p> | <p><b>Motion for Judgment on the Pleadings</b></p> <p>Defendants Andy Atiyeh and Lannette Atiyeh move for Judgment on the Pleadings as to Plaintiff Jin and Yu, LLC's Complaint.</p> <p>Although Defendants Notice of Motion states that the Motion is supported by a concurrently filed Request for Judicial Notice, no Request for Judicial Notice was filed with the Court. (See ROA 178, 181, 184.)</p> <p>Defendants move for judgment on the pleadings pursuant to Code of Civil Procedure section 438.</p> <p><u><i>Res Judicata and Collateral Estoppel</i></u></p> <p>Defendants argue res judicata and collateral estoppel bar Plaintiffs claims. This court has ruled on Defendants' arguments based on collateral estoppel and res judicata twice before. First, on 2/3/25, in ruling on Defendants' Motion to Dismiss in which Defendant argued forum non conveniens, res judicata and collateral estoppel, the court treated the motion as a general demurrer and ruled that "Defendant has failed to show that either res judicata or collateral estoppel apply." (ROA 80.) Second, on 8/11/25, in ruling on Defendants' Demurrer in which Defendants again argued res judicata and collateral estoppel, the court once again rejected these arguments finding the court had already ruled on these arguments. (ROA 138.)</p> <p>This is the third time Defendants argue res judicata and collateral estoppel. Code of Civil Procedure section 438, subdivision (g) provides "The motion provided for in this section may be made even though either of the following conditions exist: (1) The moving</p> |

party has already demurred to the complaint or answer, as the case may be, on the same grounds as is the basis for the motion provided for in this section and the demurrer has been overruled, provided that there has been a material change in applicable case law or statute since the ruling on the demurrer.” Here, Defendants raise the same arguments based on res judicata and collateral estoppel without showing an intervening change in law. Therefore, Defendants have failed to show res judicata and collateral estoppel bar Plaintiffs claims.

*Judicial Estoppel*

Defendants also contend Judicial Estoppel bars Plaintiffs claims. Judicial estoppel “applies when ‘(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.’ [Citations.]” (Aguilar v. Lerner (2004) 32 Cal. 4th 974, 986–87.)

Defendants contend that Plaintiffs “obtained advantages in the UD case and in the related appeal by insisting that the Atiyehs were not parties and not liable.” (Motion, 4:12-13.) However, Defendants have not shown how the position is an inconsistent one that Plaintiffs prevailed upon. Therefore, Defendants have failed to show judicial estoppel bars Plaintiffs claims.

*Plaintiffs’ statements to the Court of Appeal*

Defendants contend that “[h]aving told the Court of Appeal that their damages ended in December 2020 and were limited to amount already awarded, Plaintiffs may not now seek damages for later periods, new categories of loss, or contract enforcement through 2024.” (Motion, 6:9-11.) Unlike the damages in that case, Plaintiffs damages, here, are based on Defendants’ unlawful holdover and vandalization of property after remand to the trial court. Therefore, this is not grounds for a motion for judgment on the pleadings.

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|    |                                                                                                               | <p><u>Court's Prior Rulings</u></p> <p>Defendants contend the Court's 2/3/25 Order ruling on Defendants' Motion to Dismiss shows irregular judicial encouragement of default. Further Defendants argue the Court's 10/20/25, ruling confirms preclusive material were presented to the court but the ruling did not address res judicata, collateral estoppel, or judicial estoppel. Defendants' disagreements with the Court's prior rulings are not a proper subject of a motion for judgment on the pleadings.</p> <p><b>Tentative Ruling:</b> Defendants' Motion for Judgment on the Pleadings is DENIED.</p> <p>Moving Defendants to give notice.</p>                                                                                                                                                                                                  |
| 11 | <p><b>Lawrence vs. The Cape Series at Aliso Viejo Maintenance Corporation</b></p> <p><b>2023-01314623</b></p> | <p><b>Motion for Bifurcation</b></p> <p><i>Continued to 07/13/2026 by stipulation.</i></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| 12 | <p><b>Lee vs. Hyundai Motor America</b></p> <p><b>2025-01521906</b></p>                                       | <p><b>1. Motion to Compel Arbitration</b><br/> <b>2. Case Management Conference</b></p> <p>Defendant Hyundai Motor America (HMA) moves to compel plaintiff Sang Jik Lee to arbitrate his claims and to stay the action pending the outcome of arbitration pursuant to the Federal Arbitration Act (9 U.S.C. § 1, et seq.) (FAA) and the California Arbitration Act (Code Civ. Proc., § 1281, et seq.) (CAA).</p> <p><u>Procedural issues</u></p> <p>Plaintiff has not submitted a signed proof of service showing the opposition was served on HMA. (See Code Civ. Proc. § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As HMA filed a reply, HMA does not appear to have been prejudiced by Plaintiff's failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service.</p> |